
The Comey Indictment Is Just the Beginning

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[*Sign up for the Surge*](#), the newsletter that covers most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, a politics newsletter that has been freebasing crushed Tylenol pills ever since Donald Trump told us not to.

It was another suboptimal week for American politics news. But the good news is that the government will run out of funding next week, which means—and our reading of the literature on this is admittedly light—that all politics will stop. We'll talk about the unusually expensive lunch that border czar Tom Homan allegedly tucked into last year, and we'll set the picnic tables for Pete Hegseth's military jamboree next week.

But first, even by recent standards of democratic-backsliding, this week was a standout.

1.

Lindsey Halligan

Where does Trump keep finding these people?

Last week, the White House successfully pushed out Erik Siebert from his role as U.S. attorney for the Eastern District of Virginia. He was ousted for failing to prosecute one of President Trump's political enemies, New York Attorney General Letitia James. Over the ensuing weekend, Trump addressed Attorney General Pam Bondi on social media urging her to pick up the pace of prosecutions against his political enemies, including James, former FBI Director Jim Comey, and Sen. Adam Schiff. "We can't delay any longer," he [wrote](#), "it's killing our reputation and credibility." He then appointed one of his lackeys, 36-year-old Florida insurance lawyer who has no prosecutorial experience Lindsey Halligan, to fill the vacant EDVA post against the wishes of "senior DOJ leadership." Halligan agreed to pursue charges against Comey related to his 2020 congressional testimony just before the statute of limitations expired, ignoring prosecutors who'd presented her with a "detailed declination memo" against doing so. Comey was indicted on [Thursday](#).

There's not much to analyze, here. We've got a president openly directing the Justice Department to prosecute his enemies, and firing anyone who doesn't go along. If only the Surge had a published platform with a template for ranking things, we'd put this among the most egregious things Trump has done. It should disgust and alarm every adult in the country—you get a pass, [Martha Stewart](#)—even though most people have good reason to dislike Jim Comey. Polling on it will probably break down along partisan lines.

2.

Tom Homan

Damn, we've been ordering the wrong thing at Cava.

This week we learned that White House border czar Tom Homan, the administration's closest analogue to [Sgt. Slaughter](#), was recorded in an FBI sting last year allegedly [accepting](#) \$50,000 from undercover agents posing as businessmen to whom Homan would steer contracts in the next Trump administration. The cash was delivered inside a bag from slop-bowl chain Cava. The Justice Department reportedly held off on charges to see if Homan, upon entering government, would fulfill his end of the bargain. But—and you won't believe this—the case was put on ice and ultimately closed after the Trump administration took over.

The FBI and DOJ said in a statement that “this matter originated under the previous administration and was subjected to a full review by FBI agents and Justice Department prosecutors. They found no credible evidence of any criminal wrongdoing.” More interesting, though, have been the misaligned responses from the White House and Homan himself. White House press secretary Karoline Leavitt [told reporters](#) flat-out that “Mr. Homan never took the \$50,000 that you're referring to.” Homan, meanwhile, [sidestepped](#) the question, saying instead that “I did nothing illegal, I did nothing criminal.” That seems like a discrepancy that the release of a recording could help clear up.

3.

Russ Vought

The shutdown stakes just rose.

The raucous street festivals accompanying the beginning of any new fiscal year may be diminished next week, as the government is barreling toward a shutdown when funding expires Oct. 1. To recap: Republicans want to pass a seven-week extension of current funding to continue bipartisan negotiations on a longer-term budget. But Democrats—whose votes are needed to break a filibuster in the Senate—are insisting on negotiations to reverse Medicaid cuts, extend expiring Obamacare subsidies, and apply some guardrails on the administration's handling of congressionally appropriated funds. Republicans won't fold, because they have upper hand. Democrats don't *appear* to be willing to fold, at least not right away, given the enormous pressure they're under from their base to put on a performance of fighting.

In a normal shutdown scenario, a likely end would be Democrats receiving some face-saving “assurances” either just before or a few days into a shutdown. Everyone moves along. But the Trump administration doesn't really do “normal.” And Russ Vought, the anti-government director of the Office of Management and Budget, issued a [memo](#) this week [instructing agencies](#) to prepare plans for mass *firings*—not just furloughs—of federal employees in the event of a shutdown. In a statement, Minority Leader Chuck Schumer brushed this off as an “attempt at intimidation” and observed that “these unnecessary firings will either be overturned in court or the administration will end up hiring the workers back, just like they did as recently as today.” We agree it's an attempt at intimidation. It's a really good one too! We expect there will be much to discuss on this front next

week.

4.

Robert f. kennedy Jr.

Fine, put your little label on Tylenol.

On Monday, Trump, alongside his top health officials, announced that the Food and Drug Administration would be initiating a [label change](#) on acetaminophen (Tylenol) warning that its use “by pregnant women may be associated with an increased risk of neurological conditions such as autism and ADHD in children.” In its [letter to physicians](#), the FDA at least attempted to sound professional, noting that “while an association between acetaminophen and autism has been described in many studies, a causal relationship has not been established and there are contrary studies in the scientific literature.” Our president, meanwhile, did not. “With Tylenol, don’t take it. Don’t take it,” Trump [said](#). He suggested pregnant women “ideally” not “take it at all,” but if they can’t “tough it out” with a high fever, they could use it “very sparingly.” How generous.

This may seem terrible—it’s not good!—but it’s mostly an effort at face-saving from a frustrated MAHA movement. At the beginning of April, Robert F. Kennedy Jr. [said](#) in a Cabinet meeting that “by September, we will know what has caused the autism epidemic and we’ll be able to eliminate those exposures.” You can bet a pallet of fresh-off-the-mill Tylenol inventory that Kennedy thought he would’ve at least had the government officially unrecommend the hepatitis B or the measles, mumps, and rubella vaccine by now. But GOP pollsters have [warned](#) that public health disasters don’t poll well, and the Centers for Disease Control’s recommended changes made to the childhood vaccine schedule last week were [lighter](#) than Kennedy’s movement would want. The September deadline came, and the best the administration could do was jabber about Tylenol in a condescending and politically backward tone.

5.

Pete Hegseth

Hope you can make my military leadership party! Attendance is mandatory.

The defense secretary’s long war to make people respect his authority has become one of attrition. With a couple of different moves this week, Pete Hegseth—who does not *have* to be in the news, if he could just accept that—forced a weary nation to turn its eyes, once again, to him.

After Surge press time last week, the Pentagon distributed a memo to reporters requiring them, in the New York Times’ [description](#), “not to gather or use any information that had not been formally authorized for release or risk losing their credentials to cover the military.” That is so, so far from how any of this works, and anyone who signs this pledge—no serious news outlet would—should be

mocked all the way into the Potomac River. Then there's the most unusual order from Hegseth recalling hundreds of the top military leaders around the world to Virginia [next week for some meeting in Quantico](#). Speculation abounds. Will there be a firing spree? Will they have to sign a dumbass pledge, too? Trust-building exercises between the Atlantic and Pacific fleets? Trump said on Thursday that "they're going to be talking about the newest weapons." Huh? This meeting is either bad news, or it's the biggest "could've been an email" of the year.

6.

Ted Cruz

Strange new levels of strange new respect.

The Surge has long held a theory about Texas Sen. Ted Cruz. He's a meticulous planner, and his plan was, essentially, to re-run the Reagan revolution. After Mitt Romney's defeat in 2012, he framed the choice in 2016 as between another establishment figure (Jeb Bush, or some other dweeb) and a true, credentialed conservative that the movement had been waiting for (him). That the GOP nomination, American presidency, and ensuing 10-years-and-running of global politics instead went to an oddball celebrity populist shocked Cruz and threw him off his game for years. He had spent his life building a planar model of his ascent to the presidency, only to get whacked in the head by an unforeseen z-axis.

We think about this the one or two times a year that Cruz emerges from his shell to push back on an emerging Trumpian consensus. In his podcast late last week, Cruz described Federal Communications Commission Chair Brendan Carr's threat against Disney leading up to Jimmy Kimmel's suspension as "right out of *Goodfellas*" and "dangerous as hell." He [warned](#) that "there will come a time when a Democrat" is president again—bold prediction, to be honest—and "they will use this power, and they will use it ruthlessly." The remark earned Cruz [praise from liberals—including Kimmel](#)—which he could've done without. Our bigger-picture takeaway, though, [having covered Cruz for years](#), is: He's planning again. He's dropping sporadic disagreements with Trump, which he knows will get significant media coverage, in the event the entire nationalist path brings the Republican Party to tatters and it looks for a home in conservatism again. Is that likely? No, nothing is likely anymore. The only *likely* thing on Earth is that Donald Trump will live to be 167 years old. But if unlikelihood breaks a certain way, it leaves Cruz with a path to his lifelong goal.

7.

Javier Milei

Bailout season is upon us.

We are in the age of America *first*, baby. That means: No more "globalism," no more handouts to foreigners or foo-foo "aid" to distant countries that have nothing to do with us. We're strictly looking

out for the good folks at home. But also: Argentina? The administration is working out a plan to [backstop](#) the Argentinian economy to the tune of \$20 billion. Argentinian financial markets have been in turmoil as the country [loses faith](#) in chainsaw-wielding President Javier Milei's "shock therapy" and austerity, and this is an attempt to help Milei out ahead of upcoming congressional elections. Why is Trump doing this? Once again, there's not much to analyze here, Because Trump says it so directly: "I love him because he loves Trump," Trump [said](#) of Milei last year. "Anybody that loves me, I like them." And that's why the U.S. taxpayer has to subsidize his political experiment.

What's incredible about this, too, is that comes at a time when an important Republican constituency—farmers—are already mad at Argentina. Soybean farmers have suffered the brunt of Trump's trade war with China. And *where* has China gone to replace the soybeans it's not buying from the United States? Argentina, which [suspended](#) its export tax on soybeans, to boost sales to China and undercut the U.S. position, *while* negotiating this American bailout with the Treasury Department. The move has further [infuriated](#) already furious U.S. farmers. Will there be real consequences for Trump's treatment of farmers? No! We no longer have political consequences in this country. But Trump's [going to bail out the farmers.](#) just in case.

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